VOLUME-DISCOUNT & QUARTERLY-REBATE SCHEDULE

Issue 1.0 • New Jersey retailer accounts • effective 15 February 2026

Legal-review snapshot: Hartsmere Associates review current through **15 February 2026**. This operating schedule is not a legal opinion or a regulator, court or Rushmere Council endorsement.

1 PROGRAM SCOPE & ELIGIBILITY

Eligible accounts. Active New Jersey grocery, specialty-food, pharmacy or convenience-store accounts with a current resale certificate, buying covered goods for resale from their own retail location(s). New Jersey delivery is required. Direct-to-consumer, marketplace, institutional, public-sector, distributor and non-resale accounts are excluded. **Rushmere Council is a non-resale event purchaser and is outside this retailer schedule.**

Coverage. Only the following items participate; the Holiday Gift Assortment is excluded.

Product ID	Covered product	Base wholesale	MSRP
MC-SCB-12	Sea-Salt Caramel Bites, 12-count display case	$40.00 per case	$5.99 each
MC-HTC-08	Heritage Truffle Collection, 8-count display case	$54.00 per case	$7.99 each
MC-CNC-10	Cocoa Nib Crisp Squares, 10-count display case	$25.00 per case	$3.99 each

MSRP. Manufacturer-suggested retail price is a bona fide comparison reference only. Each retailer independently sets its resale and advertised price. Representatives may not condition a wholesale term on any advertised or resale price.

2 REGULAR VOLUME TIERS

Completed eligible cases in calendar quarter	Immediate invoice discount
1–239 completed eligible cases	5%
240–599 completed eligible cases	10%
600 or more completed eligible cases	15%

Measurement and tier operation. Calendar quarter means 12:00 a.m. on its first day through 11:59 p.m. on its last day. The highest tier reached applies **retroactively to all completed eligible purchases in that quarter**. Shipments invoice at the tier then established by completed quarter-to-date volume. Within 10 business days after quarter end, Finance issues a volume credit for any difference needed to apply the final highest tier to earlier eligible purchases. Returns, cancellations and credited units are removed from volume and related credits.

Aggregation. Aggregate only locations owned by the same legal retailer and enrolled before the quarter under one Marchmont billing account. Never aggregate separately billed accounts, affiliates, franchises, buying groups or other legal entities.

3 PRICE TERMS, REBATE & FREIGHT

Defined terms — use exactly. Invoice net price is the merchandise amount actually invoiced after the immediate applicable tier discount, before the quarterly rebate and freight allowance. The quarter-end volume credit completes the retroactive tier treatment. **Effective net price** is the after-quarter merchandise result: final invoice net price less the earned quarterly rebate and the applicable separate freight allowance. Do not use bare “net price.”

Price basis. The invoice discount is applied only to the base wholesale merchandise list price shown on page 1; it is not applied to MSRP, freight, tax, deposits or other non-merchandise amounts.

Quarterly rebate. An account completing at least **480 eligible cases** earns **2.0%** of final invoice-net merchandise purchases for that quarter. The rebate base excludes freight allowances and charges, taxes, deposits, returns, credits and every non-merchandise amount. Finance calculates by the **10th business day** after quarter end and issues a **credit memo by the 15th business day**. Later returns, reversals, shortfalls or prior-credit errors are corrected on the next statement or credit memo.

Freight allowance — revised. For eligible cases shipped on or after **15 February 2026**, Marchmont grants a separate **$1.20 per eligible shipped display case** on retailer deliveries of **24 or more eligible cases** to one New Jersey receiving location. It is a freight credit/allowance, not a merchandise-list-price reduction, is excluded from the rebate base, and reduces effective net price once.

4 EFFECTIVE-NET CALCULATION

Effective net per eligible case = base wholesale price – **applicable final tier discount** – **2.0% quarterly rebate (if the 480-case trigger is met)** – **$1.20 freight allowance (if shipment conditions are met).** Components appear once only. Currency is rounded to the nearest cent at the displayed per-case and transaction totals.

Worked calculation — MC-SCB-12. An account completes 600 eligible Sea-Salt Caramel Bites cases in the quarter and ships the cases to one NJ location: base $40.00 × 600 = $24,000.00; 15% final tier discount = $3,600.00; final invoice net = $20,400.00 ($34.00/case). Rebate: 2.0% × $20,400.00 = $408.00 ($0.68/case). Freight allowance: $1.20 × 600 = $720.00. Effective net = $20,400.00 – $408.00 – $720.00 = **$19,272.00 ($32.12/case).**

Reconciliation. Finance applies volume, rebate and freight credits as stated above; no return or credited purchase remains in qualification or value. Disputed calculations or changed facts: stop and escalate to Sales Operations and Compliance before any promise.

5 CONSISTENT ACCESS & DOCUMENTED EXCEPTIONS

Published schedule. Sales Operations will make this schedule available to every qualifying account. Apply its objective tiers consistently to similarly situated accounts. Actual documented commercial facts may support a limited distinction; do not use account-by-account discretion as a substitute for the published schedule.

Bounded cost differential. The 10 February routing study supports only a separately identified **$0.45 per-case handling differential** for a full **60-case pallet** delivered to one New Jersey receiving dock, through 31 December 2026. It does not justify the regular tiers or any larger/unrelated differential.

Street-match / meeting competition. A response may be made only in good faith to meet a **specific, verified competing offer**, not to undercut competitors generally. Before an adjusted price is used, Sales Operations and Compliance must approve and retain contemporaneous evidence naming the competitor, comparable product, offered price, affected customer, quantity, delivery/market circumstances and offer duration.

The adjustment is limited to the comparable product, affected customer, supported amount, documented quantity and verified duration. It is not a new tier. A documented street-match can put a smaller account below another account's regular effective tier; that fact alone neither changes this published tier schedule nor entitles any account to the exception. For the verified packet case only, any match is limited to Cedar Grove Candy Pantry; MC-SCB-12; $31.50 per case; up to 180 cases; and the written offer valid through 7 March 2026.

6 ADMINISTRATION, RECORDS & COMPLIANCE

Representatives must escalate before promising or publishing a nonstandard term: disputed calculation, changed competitive fact, suspected misuse, or any retailer-specific advertising change. Retain qualification, cost-support, true-up and competitive-offer records for **4 years**. Availability, cost and competition facts are bounded controls or defenses; they do not guarantee that every differential is lawful.

This schedule reflects the packet's federal and New Jersey review as of 15 February 2026. It does not claim approval by a court, regulator or Rushmere Council.

7 REVISION RECORD

Issue 1.0, 06 March 2026: replaces the superseded $18-per-pallet freight treatment with the $1.20-per-eligible-case allowance effective 15 February 2026; distinguishes invoice net price from effective net price; confirms retroactive quarterly tiers, rebate base and settlement; removes the Rushmere Council non-resale account; adds record retention, escalation and documented street-match controls; and confines advertising to exact substantiated wording in the controlled claims guide.

APPROVED AND SIGNED ELECTRONICALLY Ibrahim Rasmussen Sales Manager, Marchmont Confections Wholesale **Approval date: 06 March 2026**	**Owner issue authorization** March 2026 issuance authorized in packet Schedule effective: 15 February 2026